

GUARDIANSHIP OF ARTEMIS, ATHENA, AND NEMESIS EVANS-DEPINA

Case Number: 23PG-0031894

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar to confirm the Court Trials for 1) Petition for Appointment of Successor Guardian of the Minor, Nemesis Evans-Depina, filed by Daniel and Ashley Buchanan; 2) Petition for Appointment of Successor Guardian of Minors, Artemis and Athena Evans-Depina, filed by Chris and Lauren Donaghe; 3) Petition for Visitation, filed by Father, Andrew Depina; and 4) Petition for Termination of Guardianship, filed by Parents, Andrew and Stormy Depina. All matters are calendared for contested hearing on November 4, 2024 at 2:00 p.m. in Department 42. Aneke Stokes represents the minors and has confirmed representation.

All Petitions are properly noticed with the exception of the Petition for Termination filed by the parents Andrew and Stormy Depina. The Court dispensed with notice to the deceased paternal grandfather. The siblings, Guardians, proposed Guardians, and paternal grandmother have been served. Based on the service on the Guardians and proposed Guardians, the Court deemed the minors to have been timely served. The Guardians have filed an objection. There is no proof of service on the maternal grandparents. At the last hearing on September 23, 2024, the Court noted that Petition states that the maternal grandparents are unknown but prior Petitions identify them as Kathy and Edward Borders. The Court requires service on the maternal grandparents to proceed on the Petition for Termination. The parents were notified of this as the minutes from September 23, 2024 were mailed to the parents on October 8, 2024.

An appearance is necessary to confirm today's contested hearings.

GUARDIANSHIP OF AIDYN FLAMMINI

Case Number: CVPG17-0029352

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This matter is on calendar for further proceedings on a Petition for Appointment of Successor Guardian of the Person of minor, Aidyn Flammini. The Petition was filed by the minor's aunt and uncle, Barbara and Gary Grewell. The Current Guardian is the maternal grandfather, Charles Flammini.

The Court previously dispensed with notice to the deceased mother and deceased paternal grandmother. A consent has been filed on behalf of the Guardian/maternal grandfather but it was executed by a purported power of attorney. A copy of the power of attorney was not provided to establish authority to sign on behalf of the Guardian/maternal grandfather. The Court notes that a Petitioners have requested that the Court dispense with notice to the father and paternal grandparents, however, insufficient information has been provided to permit the Court to dispense with notice to these parties. The father, minor, and Guardian/maternal grandfather must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c).

The Court has reviewed the Court Investigator's report, filed September 5, 2024, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. Notice has been provided under ICWA. The United States Department of the Interior has responded to the ICWA notice that the identified tribe is not a federally recognized tribe.

The Courts notes that Petitioners have not filed a Consent of Proposed Guardian (Judicial Council Form GC-211). This form must be filed as to each proposed Guardian and Item 1 must be completed.

This matter is continued to **Monday, December 30, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining in further detail why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF KYLE FODEN

Case Number: 24PG-0032509

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